

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 28, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 28, 2023, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against 35 BURGER FRANQUICIAS, S.L. (hereinafter, the respondent) for not having adequately addressed his right to erasure.

The complainant states that, on August 6, 2021, he sent a request for data erasure to the respondent via email sent to the email address \*\*\*EMAIL.1, without receiving a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated, in summary, that it has not been able to address the right to erasure exercised by the complainant for a single reason: it neither has nor processes his data. It states that it has never processed the complainant's data and therefore cannot erase data that does not exist. Regarding the lack of response to the complainant, the respondent explains that, although it may sound like an excuse, it did not respond to the email out of fear that it might be a fraud and that by responding, it could be held liable for processing that personal data.

THIRD: The result of the transfer process indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied, given that the respondent does not provide evidence of compliance with the duty to respond to the request for the exercise of the right to erasure as provided in Article 12.4 of the LOPDGDD.

Consequently, on December 28, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present any allegations it deemed appropriate.

The respondent has provided a copy of the document sent to the complainant "(...) notifying him that his data has been deleted," as well as information from the website of the Postal Service indicating that the aforementioned document has been delivered to the complainant.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant so that, within ten working days, he may formulate any allegations he considers appropriate, without submitting allegations within the established period.

## LEGAL GROUNDS

### I

#### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this

organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures.”

## II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the respondent for them to...

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
3/6

proceed to its analysis, respond to this Agency within one month, and demonstrate that the proper response has been provided to the claimant.

The result of this transfer did not allow for an understanding that the claims of the claimant were satisfied. Consequently, on December 28, 2023, for the purposes provided in articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated by article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

## III

### Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data

subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the controller.

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
4/6

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

#### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), insofar as...

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
5/6

the right indicated in section 1 could make it impossible or severely hinder the achievement of the objectives of that processing, or

- e) for the formulation, exercise, or defense of claims."

V

#### Conclusion

In the case analyzed here, from the examination of the documentation provided, it has been

established that the claiming party exercised their right to erasure before the responding party and that, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response.

However, during the processing of this procedure, the responding party sent a letter to the claiming party informing them of the erasure of their data, providing proof of receipt of said letter by the claiming party.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that those responsible must necessarily issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present claim on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es

6/6

FIRST: TO UPHOLD on formal grounds the claim made by Mr. A.A.A. against 35 BURGER FRANQUICIAS, S.L. However, it is not appropriate to issue a new certification by the responding party, as the response was issued late, without requiring the responsible party to carry out additional actions. SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to 35 BURGER FRANQUICIAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí  
Director of the Spanish Agency for Data Protection  
C/ Jorge Juan, 6  
www.aepd.es

28001 – Madrid  
sedeagpd.gob.es